

CLASSIFIED EMPLOYEE DISMISSAL AND DEMOTION GRIEVANCE PROCEDURES

The School Board adopts the following procedure for the dismissal or demotion of classified employees in accordance with §22.1-79(6) of the Code of Virginia. Nothing in this procedure is intended to create, nor shall it be construed as creating, a property right in employment or expectation of continued employment, nor shall this procedure be interpreted to limit in any way whatsoever the School Board's exclusive final authority over the management and operation of the school division.

A. Definitions

The following words and terms have the following meanings when used in this procedure, unless the context clearly indicates otherwise.

"Days" means calendar days unless a different meaning is clearly expressed in this procedure. Whenever any period of time fixed by this procedure shall expire on a Saturday, Sunday, or legal holiday, the period of time for taking action under this procedure shall be extended to the next day that is not a Saturday, Sunday or legal holiday. "Working days" means those days that the School Board's central office is open for business for a full day.

"Dismissal" means the dismissal of a classified employee for disciplinary reasons during the term of such employee's employment.

"Demotion" means the involuntary assignment of an employee to a lower paying position for disciplinary reasons during the term of such employee's employment.

"Grievance" means a complaint or dispute involving the dismissal or demotion of a classified employee. "Grievance" shall not mean a complaint or dispute regarding any suspension of an employee, the nonrenewal or layoff of an employee, or reprimands or other forms of disciplinary action other than a dismissal or demotion. For suspensions of classified employees of more than five days, the procedures as set forth in §22.1-315 of the Code of Virginia will be followed. Other grievances, grievable under Parts I and II of Policy 7-4 (Procedures for Adjusting Grievances), will use the procedures of Part II of Policy 7-4.

"Employee" or "employees" means all full-time employees of the school division who have completed the required probationary (introductory) period, except the Division Superintendent and those employees covered under the provisions of Articles 2 and 3 of Chapter 15 of Title 22.1 of the Code of Virginia. "Employee" does not mean a part-time or temporary employee.

B. Procedure

1. Written notice of the proposed action, along with a statement of the reasons for the action, shall be given to the employee by his or her supervisor or appropriate administrator. Such notice shall also advise the employee that he may file a written request for a hearing with the superintendent within five days of the written notice, and that the failure to file such a request within the prescribed time will constitute a waiver of

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the right to a hearing and the action will become final without a hearing or further notice. The superintendent may appoint a designee to hold the hearing.

2. Upon a timely written request, the superintendent or designee shall hold a hearing within ten working days of receipt of the employee's request. Notice of the hearing shall be given orally or in writing to the employee at least five calendar days before the hearing.

3. The employee and his or her supervisor may be represented by legal counsel or a designated representative at the hearing. The hearing shall be private and the superintendent or designee shall have full discretion over the conduct of the hearing. However, the employee and the supervisor may make opening statements, may present material and relevant evidence, including the testimony of witnesses, may cross-examine witnesses, and may make closing remarks. Witnesses may be questioned by the superintendent or designee. Rules of evidence do not apply and hearsay is permitted. The superintendent or designee shall be responsible for compiling the record presented.

4. The superintendent or designee shall give the employee a written decision within five working days after the completion of the hearing. The decision shall be based on the evidence relevant to the issues produced at the hearing in the presence of each party unless the employee fails to appear for the hearing. In such case, the decision will be based on the evidence adduced at the hearing. If the Superintendent/designee decides to accept the recommendation of dismissal or demotion, the decision shall specify the effective date of the action, which may be immediate. When a designee is designated by the Superintendent to hear an appeal, the designee will make the decision.

5. The employee may request a review of the decision by the School Board by providing written notice to the superintendent within five (5) days of the decision of superintendent or designee. Upon timely filing of the request, the School Board shall make its decision based upon a review of the record from the superintendent's or designee's hearing and render its decision within 30 days of the request. The School Board's decision shall be final.

[Former Policy 7-6]

Adopted: 4/28/15

Confirmed: 9/26/17

Legal Ref: Code of Virginia [22.1-79\(6\)](#)

Cross-Ref: [Policy 7018](#), Procedure for Adjusting Grievances